possess a calculus of suffering. We don't know how many 'suffering points' or 'happiness points' to assign to particular events, so in complex historical situations it is extremely difficult to calculate whether a given action increases or decreases the overall amount of suffering in the world.

Utilitarianism is at its best in situations when the scales of suffering are very clearly tipped in one direction. When confronted by Eichmann, utilitarians don't need to get into any complicated debates about identity. They just need to point out that the Holocaust caused immense suffering to the Jews, without providing equivalent benefits to anyone else, including the Germans. There was no compelling military or economic need for the Germans to murder millions of Jews. The utilitarian case against the Holocaust is overwhelming.

Utilitarians also have a field day when dealing with 'victimless crimes' like homosexuality, in which all the suffering is on one side only. For centuries, the persecution of gay people caused them immense suffering, but it was nevertheless justified by various prejudices that were erroneously presented as deontological universal rules. Kant, for example, condemned homosexuality on the grounds that it is 'contrary to natural instinct and to animal nature' and that it therefore degrades a person 'below the level of the animals'. Kant further fulminated that because such acts are contrary to nature, they 'make man unworthy of his humanity. He no longer deserves to be a person.'[39] Kant, in fact, repackaged a Christian prejudice as a supposedly universal deontological rule, without providing empirical proof that homosexuality is indeed contrary to nature. In light of the above discussion of dehumanisation as a prelude to massacre, it is also noteworthy how Kant dehumanised gay people. The view that homosexuality is contrary to nature and deprives people of their humanity paved the way for Nazis like Eichmann to justify murdering homosexuals in concentration camps. Since homosexuals were allegedly below the level of animals, the Kantian rule against murdering humans didn't apply to them.[40]

Utilitarians find it easy to dismiss Kant's sexual theories, and Bentham indeed was one of the first modern European thinkers who favoured the decriminalisation of homosexuality.[41] Utilitarians argue that criminalising homosexuality in the name of some dubious universal rule causes tremendous suffering to millions of people without offering any substantial benefits to others. When two men form a loving relationship, this makes them happy without making anyone else miserable. Why then forbid it?